BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

BENCH AT ALLAHABAD

ORIGINAL COMPANY JURISDICTION

In

COMPANY APPLICATION (CAA) NO. 15/ALD/2021

(Under Section 230-232 of the Companies Act, 2013)

In the matter of Companies Act, 2013

And

In the matter of Sections 230-232, Section 66 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016

And

IN THE MATTER OF:

AJAY REALTECH (INDIA) PRIVATE LIMITED , having CIN U70102UP2012PTC048910 and having its registered office situated at 7th Floor, Plot No. 01B Sector-126, Noida, Gautam Buddha Nagar UP 201303

TRANSFEROR COMPANY NO.1 / APPLICANT COMPANY NO.1

And

GOODLY DEVELOPERS PRIVATE LIMITED, having CIN U70200UP2010PTC141113 and having its registered office situated at 7th Floor, Plot No. 1B Sector-126, Noida, Gautam Buddha Nagar, UP - 201303

TRANSFEROR COMPANY NO.2 / APPLICANT COMPANY NO.2

And

STAR LANDCRAFT PRIVATE LIMITED, having CIN U70102UP2012PTC053874and having its registered office situated 7th Floor, Plot No. 01/B Sector-126, Noida, Gautam Buddha Nagar, UP-201303 .

TRANSFEREE COMPANY / APPLICANT COMPANY NO.3

AND

their respective Shareholders and Creditors

ORDER DELIVERED ON: 05.08.2021

CORAM:

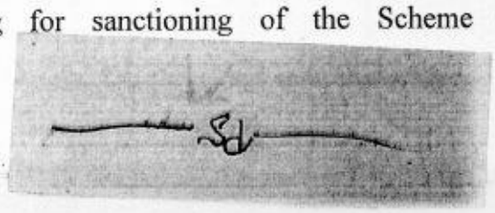
Hon'ble Mr. Justice (Retd.) Rajesh Dayal Khare, Member, Judicial

For the Applicant Companies: Krishna Dev Vyas, Adv

Per se: Mr. Justice (Retd.) Rajesh Dayal Khare, Member (Judicial)

ORDER

1. This a joint Applicant application filed under Section 230(1) read with Section 232(1) of the Companies Act, 2013, read with the National Company Law Tribunal Rules, 2016 along with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 praying for sanctioning of the Scheme of



Amalgamation of Ajay Realtech (India) Private Limited Transferor Company No.1 / Applicant Company No.1 And Goodly Developers Private Limited Transferor Company No.2 / Applicant Company No.2 And Star Landcraft Private Limited Transferee Company / Applicant Company No.3. The Scheme of Amalgamation is annexed as Annexure-A-22 to the application.

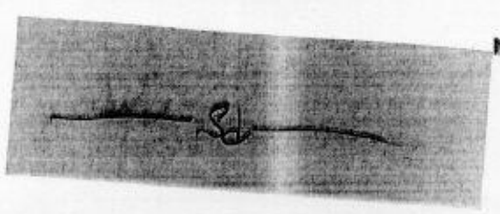
2. **AJAY REALTECH (INDIA) PRIVATE LIMITED** (hereinafter referred to as "the Transferor Company No.1/Applicant Company No.1") is a Company incorporated under the provisions of the Companies Act, 1956 on 14.02.2012 with Registrar of Companies, Kanpur. The main objects of the Transferor Company No.1 / Applicant Company No.1 are set out in its Memorandum of Association which is **annexed as Annexure-A-1 to the application.**

3. That the Authorized, Issued, Subscribed and Paid up share capital of the Transferor Company No.1 / Applicant Company No.1 as on date are:

As per Audited Annual Accounts as on 31st March, 2020	
Particulars	**Amount (in Rs.)**
Authorised Share Capital 1,00,000 Equity Shares of Rs. 10/- each	10,00,000
Issued, Subscribed and Paid-up Share Capital 20,000 Equity Shares of Rs. 10/- each	2,00,000

4. That **GOODLY DEVELOPERS PRIVATE LIMITED** (hereinafter referred to as "the Transferor Company No.2 / Applicant Company No.2") is a Company incorporated under the provisions of the Companies Act, 1956 on 28.10.2010 with Registrar of Companies, NCT of Delhi and Haryana. Registered Office of the Company shifted to State of Uttar Pradesh effective from 02.02.2021. The main objects of the Transferor Company No.2 are set out in its Memorandum of Association which is **annexed as Annexure-A-2 to the application.**

5. That the Authorized, Issued, Subscribed and Paid up share capital of the Transferor Company No.2 / Applicant Company No.2 as on date are:



Amalgamation of Ajay Realtech (India) Private Limited Transferor Company No.1 / Applicant Company No.1 And Goodly Developers Private Limited Transferor Company No.2 / Applicant Company No.2 And Star Landcraft Private Limited Transferee Company / Applicant Company No.3. The Scheme of Amalgamation is annexed as Annexure-A-22 to the application.

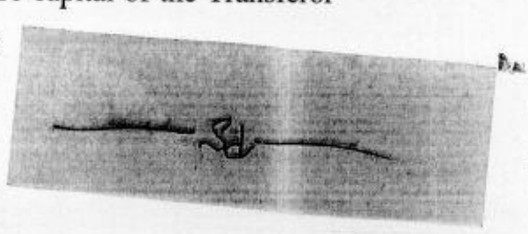
2. **AJAY REALTECH (INDIA) PRIVATE LIMITED** (hereinafter referred to as "the Transferor Company No.1/Applicant Company No.1") is a Company incorporated under the provisions of the Companies Act, 1956 on 14.02.2012 with Registrar of Companies, Kanpur. The main objects of the Transferor Company No.1 / Applicant Company No.1 are set out in its Memorandum of Association which is **annexed as Annexure-A-1 to the application.**

3. That the Authorized, Issued, Subscribed and Paid up share capital of the Transferor Company No.1 / Applicant Company No.1 as on date are:

As per Audited Annual Accounts as on 31st March, 2020	
Particulars	**Amount (in Rs.)**
Authorised Share Capital 1,00,000 Equity Shares of Rs. 10/- each	10,00,000
Issued, Subscribed and Paid-up Share Capital 20,000 Equity Shares of Rs. 10/- each	2,00,000

4. That **GOODLY DEVELOPERS PRIVATE LIMITED** (hereinafter referred to as "the Transferor Company No.2 / Applicant Company No.2") is a Company incorporated under the provisions of the Companies Act, 1956 on 28.10.2010 with Registrar of Companies, NCT of Delhi and Haryana. Registered Office of the Company shifted to State of Uttar Pradesh effective from 02.02.2021. The main objects of the Transferor Company No.2 are set out in its Memorandum of Association which is **annexed as Annexure-A-2 to the application.**

5. That the Authorized, Issued, Subscribed and Paid up share capital of the Transferor Company No.2 / Applicant Company No.2 as on date are:



As per Audited Annual Accounts as on 31st March, 2020	
Particulars	**Amount (in Rs.)**
Authorised Share Capital	
11,00,000 Equity Shares of Rs. 10/- each	1,10,00,000
90,000 Preference Shares of Rs. 100/- each	90,00,000
Issued, Subscribed and Paid-up Share Capital	
9,99,120 Equity Shares of Rs. 10/- each	99,91,200

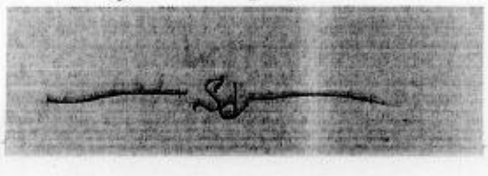
6. That **STAR LANDCRAFT PRIVATE LIMITED** (hereinafter referred to as "the Transferee Company / Applicant Company No.3")(is a Company incorporated under the provisions of the Companies Act, 1956 on 29.11.2012 under the name and style of **"STAR LANDCRAFT PRIVATE LIMITED"** with Registrar of Companies, Kanpur.. The main object of the Transferee Company / Applicant Company No.3 is set out in its Memorandum of Association which is **annexed as Annexure A-3 to the application.**

7. That the Authorized, Issued, Subscribed and Paid up share capital of the Transferee Company / Applicant Company No.3 as on date are:-

As per Audited Annual Accounts as on 31st March, 2020	
Particulars	**Amount (in Rs.)**
Authorised Share Capital	
75,00,000 Equity Shares of Rs. 10/- each	7,50,00,000
25,00,000 Preference Shares of Rs.10/- each	2,50,00,000
Issued, Subscribed and Paid-up Share Capital	
56,74,000 Equity Shares of Rs. 10/- each	5,67,40,000
25,00,000 Preference Shares of 10/- each partly paid Rs.5/- per share	1,25,00,000

8. The counsel for the Applicant Companies submitted that the circumstances which necessitated the Scheme of Amalgamation are:

   a) *For the optimum running, growth and development of the business and undertakings of the Transferor Companies and the Transferee Company with*



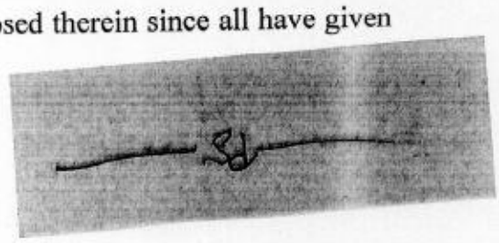
their combined resources and a larger capital and asset base, it is considered desirable and expedient to amalgamate the Transferor Companies with the Transferee Company in the manner and the terms and conditions stated in this Scheme of Amalgamation.

b) The amalgamation will enable appropriate consolidation and integration of the activities of the Transferor Companies and the Transferee Company with pooling and more efficient utilization of their resources, reduction in overheads and other expenses and improvement in various other operating parameters. The amalgamation will result in the formation of a larger and stronger entity having greater capacity for conducting its operations more efficiently and competitively. The Scheme is proposed accordingly and will have beneficial results for the Company, their shareholders, employees and all concerned.

9. That the Board of Directors of all the applicant companies has unanimously approved the Scheme of Amalgamation in their respective meetings held on 09.04.2021.

10. That the Financial Position of the Transferor Company No.1 / Applicant Company No12 on the basis of the Latest Audited Balance Sheet and Profit and Loss Account for the Financial Year ended March 31, 2020 and Provisional Balance Sheet as at December 31, 2020 is annexed as **Annexure A-4 of the application.**

11. That the Transferor Company No.1 have total **2 (Two) Equity Shareholders** as on cut-off date i.e. 10.04.2021, collectively holding 20,000 Equity Shares having the face value of Rs.10/- (Rupees Ten) each fully paid up. Further, there are no preference shareholders in the Transferor Company No.1. All the Equity shareholders of the Transferor Company No.1 / Applicant Company No.1 representing 100.00% in Number and 100.00% in value have given their consent and no objection to the present scheme on affidavit and the same has been attached in the present Company Application. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Equity shareholders of Transferor Company No.1 /Applicant Company No.1 proposed therein since all have given their consent for the same.

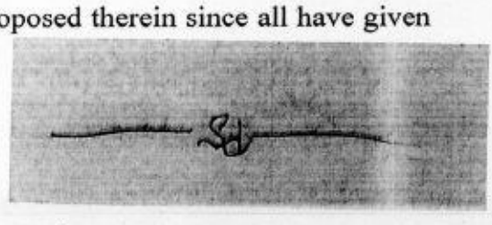


12. That the Transferor Company No. 1 has **NIL Secured Creditor(s)** as on cut-off date i.e. April 10, 2021. In this regard, Certificate from M/s Praveen K. Agarwal & Associates, Chartered Accountants, dated June 23, 2021 certifying **NIL** list of Secured Creditor(s) as on cut-off date of the Transferor Company is attached with the Application.Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Secured Creditor(s) of Transferor Company No.1 /Applicant Company No.1 proposed therein since there are NIL Secured Creditors.

13. That the Transferor Company No. 1 have 4 (Four) Unsecured Creditor(s) as on cut-off date i.e. April 10, 2021 and all have given consents. In this regard, Certificate from M/s Praveen K. Agarwal & Associates, Chartered Accountants dated June 23, 2021certifying the list of Unsecured Creditor(s) as on cut-off date of the Transferor Company No. 1 is attached with the Application. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Unsecured creditors of Transferor Company No.1 /Applicant Company No.1 proposed therein since all have given their consent for the same.

14. That the Financial Position of the Transferor Company No.2 / Applicant Company No.2 on the basis of the Latest Audited Balance Sheet and Profit and Loss Account for the Financial Year ended March 31, 2020 and Provisional Balance Sheet as at December 31, 2020 is annexed as **Annexure A-11 of the application.**

15. Further the Transferor Company No.2 have total 2 (Two) Equity Shareholders as on cut-off date i.e. 10.04.2021, collectively holding 9,99,120 Equity Shares having the face value of Rs.10/- (Rupees Ten) each fully paid up. Further, there are no preference shareholders in the Transferor Company No.2. All the Equity shareholders of the Transferor Company No.2 / Applicant Company No.2 representing 100.00% in Number and 100.00% in value have given their consent and no objection to the present scheme on affidavit and the same has been attached in the present Company Application. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Equity shareholders of Transferor Company No.2 /Applicant Company No.2 proposed therein since all have given their consent for the same.

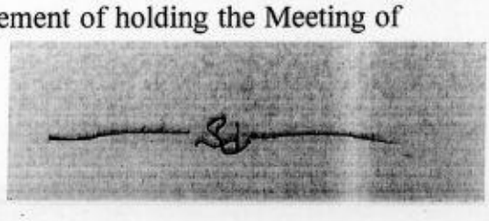


16. That the Transferor Company No. 2 has Nil Secured Creditor(s) as on cut-off date i.e. 10.04.2021. In this regard, Certificate from M/s KSA & Co., Chartered Accountants dated June 16, 2021 certifying **NIL** list of Secured Creditor(s) as on cut-off date of the Transferor Company is attached with the Application. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Secured Creditor(s) of Transferor Company No.2 /Applicant Company No.2 proposed therein since there are NIL Secured Creditors.

17. That the Transferor Company No. 2 have 1 (One) Unsecured Creditor(s) as on cut-off date i.e. April 10, 2021 and all have given consents. In this regard, Certificate from M/S KSA & Co., Chartered Accountants dated June 16, 2021 certifying the list of Unsecured Creditor(s) as on cut-off date of the Transferor Company No. 2 is attached with the Application. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Unsecured creditors of Transferor Company No.2 /Applicant Company No.2 proposed therein since all have given their consent for the same.

18. That the Financial Position of the Transferee Company / Applicant Company No.3 on the basis of the Latest Audited Balance Sheet and Statement of Profit and Loss as at March 31, 2020 and Provisional Balance Sheet as at December 31, 2020 is annexed as **Annexure A-17 of the application.**

19. . That the Transferee Company has total 3 (Three) Equity Shareholders as on cut-off date i.e. 10.04.2021, holding 56,74,000 Equity Shares having the face value of Rs.10/- (Rupees Ten) each fully paid up. Further, there is 1 Preference shareholder holding 25.00,000/- Preference share of Rs.10/- each out of which Rs.5/- have been paid up in the Transferee Company / Applicant Company No.3. All the Equity shareholders and Preference Shareholders of the Transferee Company / Applicant Company No.3 representing 100.00% in Number and 100.00% in value have given their consent and no objection to the present scheme on affidavit and the same has been attached in the present Company Application. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of



the Equity shareholders of Transferee Company /Applicant Company No.3 proposed therein since all have given their consent for the same.

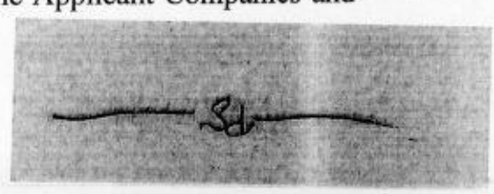
20. That the Transferee Company has **2(Two)** Secured Creditor(s) as on cut-off date i.e. April 10, 2021. In this regard, Certificate from M/s Praveen K. Agarwal & Associates, Chartered Accountants, dated June 23, 2021 certifying **2 (Two)** list of Secured Creditor(s) as on cut-off date of the Transferee Company is attached with the Application. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Secured Creditor(s) of Transferee Company /Applicant Company No.3 proposed therein since there are two Secured Creditors.

21. That the Transferee Company have 65 (Sixty Five) Unsecured Creditor(s) as on cut-off date i.e. April 10, 2021. In this regard, Certificate from M/S Praveen K. Agarwal & Associates, Chartered Accountants, dated June 23, 2021 certifying the list of Unsecured Creditor(s) as on cut-off date of the Transferee Company is attached with the Application and out of which more than 90% of Unsecured Creditors have given consent. Thus, in the circumstances, this Tribunal may be pleased to give necessary directions to dispense with the requirement of holding the Meeting of the Unsecured Creditor(s) of Transferee Company /Applicant Company No.3 proposed therein since there are 65 (Sixty Five) Unsecured Creditors and out of these more than 90% unsecured creditors of amount exceeding 90% have given consents.

22. It is also stated that the Applicant Companies have duly complied with the Accounting Standards. (Certificates from the Statutory Auditors of the Applicant Companies regarding the accounting treatment under the Scheme of Arrangement being in compliance with the Accounting Standards are enclosed as Annexure- A-23 to the application.)

23. It is prayed that Tribunal may be pleased to dispense with convening and holding of the meeting of the Shareholders, Secured and Unsecured Creditor of the Applicant Companies, to consider the Scheme of Amalgamation.

24. Heard the arguments of the Learned Counsel for the Applicant Companies and perused the documents annexed to the application.



25. From the perusal of the certificates of the Chartered Accountant as well as consent affidavits, this Tribunal is satisfied that all the Equity Shareholders, the Preference Shareholder, the Secured Creditor and the Unsecured Creditor of the Applicant Companies have consented for the Scheme of Amalgamation .

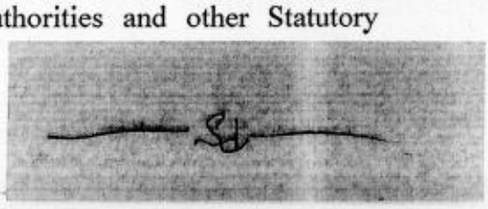
26. In view of the facts stated above, the following orders are passed:-

i. Since all the Equity Shareholders of the Applicant Company No. 1, 2 and 3 and Preference Shareholders of Applicant Company No.3 representing 100% of shareholding have given consent in the form of affidavit to the proposed Scheme of Amalgamation, the convening and holding of meetings of the Equity Shareholders of the Applicant Company No. 1, 2 and 3 are dispensed with.

ii. Further, since there are no Secured Creditor in Applicant Company No. 1 and 2, there is no requirement of convening and holding the meeting of the secured creditors of Applicant Company No. 1 and 2. Further, since all Secured Creditor in Applicant Company No. 3, representing 100% of Secured Creditors have given consent to the proposed Scheme of Amalgamation, the convening and holding the meeting of the secured creditors of Applicant Company No. 3 is dispensed with.

iii.Since all the Unsecured Creditors in Applicant Company No. 1 and 2 have consented in the form of affidavit to the proposed Scheme of Arrangement, the convening and holding of meeting of the Unsecured Creditors of Applicant Company No. 1 and 2 are dispensed with. Further, since 60 Unsecured Creditor in Applicant Company No. 3, representing more than 90% of Unsecured Creditors have given consent to the proposed Scheme of Amalgamation, the convening and holding of meeting of the Unsecured Creditors of Applicant Company No. 3 is dispensed with.

iv.The Applicant Companies shall individually and in compliance with sub-section (5) of Section 230 of the Companies Act, 2013 and Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 send notices in Form No. CAA. 3 along with copy of the Scheme of Amalgamation, Explanatory Statement and the disclosures mentioned in Rule 6 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 to: (1) Central Government (through the Regional Director), (2) the Registrar of Companies, (3) the Official Liquidator (4) the Income-Tax Authorities and other Statutory



Authorities pursuant to Section 230(5) of the Companies Act, 2013, as may be applicable. The said notices shall be sent either by registered post or by speed post or by courier or by hand delivery at the offices of the aforesaid authorities as required by sub rule (2) of Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. The aforesaid authorities which desire to make any representation under sub-section (5) of Section 230 of the Companies Act, 2013 shall send the same to this Tribunal within a period of 30 (Thirty) days from the date of receipt of such notice with an advance copy of such representation being sent simultaneously to the concerned Applicant Company at its registered office, failing which it shall be deemed that they have no representation to make on the proposed Scheme of Arrangement.

In view of the above mentioned directions, CA (CAA) No. 15/ALD/2021 is accordingly allowed and disposed off.



JUSTICE RAJESH DAYAL KHARE
MEMBER (JUDICIAL)

Date: 05.08.2021

Swati Gupta
(LRA)